

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Wednesday, September 09, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday, September 09, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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22CV-01155	Estate of Devonea Graham, et al. vs County of Merced, et al.
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Order to Show Cause Re: Dismissal - Notice of Settlement

Appearance required.

22CV-03955	Ryan Cardenas vs Warren Campbell, et al.
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Motion to Compel Compliance of Two Chairs Psychiatry and Therapy Services of California, P.C. with Subpoena for Business Records; Request for Contempt and Monetary Sanctions

The motion to compel compliance with the subpoena for business records is GRANTED.

Two Chairs Psychiatry and Therapy Services of California, P.C. are ordered to comply with the subpoena within fifteen (15) days of service of this Court's order.

The request for monetary sanctions is GRANTED.

Monetary sanctions in the amount of \$1,000 are to be paid by Two Chairs Psychiatry and Therapy Services of California, P.C. to Defendant within thirty (30) days of service of this Court's order.

Defendant is ordered to prepare a proposed order to be filed with this court within five (5) days.

24CV-03146 Carmelo Lorenzo vs 3K Farming Company, Inc., et al.

Motion for Summary Judgment

Defendant Kahlon Farming Management Company's ("KFMC") unopposed motion for summary judgment is GRANTED.

Upon consideration of all the evidence set forth in the moving papers, the Court finds that there is no triable issue of material fact and Defendant KFMC is entitled to judgment as a matter of law.

Defendant KFMC filed a separate statement of undisputed material facts, supported by admissible evidence, containing undisputed material facts that establish Plaintiffs' PAGA claims are time barred and Plaintiffs cannot prove the requisite control element to hold Defendant KFMC liable.

This shifts the burden to Plaintiffs to show the existence of one or more triable issues of material fact. (Code Civ. Proc. § 437c, subd. (p)(2).) By not filing any opposition, including a separate statement, Plaintiffs have failed to meet their burden on this motion.

Defendant KFMC is ordered to prepare and file a proposed order consistent with this order within five (5) days.

24CV-03375 Melesio Ortega vs Anthony Diaz, et al.

Status Conference

CONTINUED to November 4, 2026, pursuant to the declaration of Michael Huebner filed September 3, 2026. NO FURTHER CONTINUANCES WILL BE GRANTED without appearances. Default was entered on July 16, 2025. Since then, four continuances have been granted (this is now the fifth continuance) for counsel to gather documents necessary to Plaintiff's request for default judgment.

24CV-04618 Emmanuel Lozano vs Central Irrigation, Inc., et al.

Motion for Leave to Intervene

The unopposed motion for leave to intervene is GRANTED.

The Court will sign the order lodged on August 7, 2026.

Intervener is ordered to file their complaint-in-intervention within ten (10) days of this Court's order.

25CV-01661 Amado Hernandez et al. vs County of Merced

Order to Show Cause Re: Dismissal

Appearance required. Plaintiffs are ordered to appear and show cause why this matter should not be dismissed for non-prosecution.

26CV-01635 Evelia Aguilar Farias vs Pacific Sunrise Associates, Inc., et al.

Motion to Demur Cross Complaint and Motion Strike

The hearing on the demurrer and motion to strike is continued to October 7, 2026, at 8:15 a.m. in Courtroom 8.

Defendant has not satisfied the meet and confer requirements of Code of Civil Procedure sections 430.41 or 435.5. Although a meet and confer declaration was filed, it only states that a meet and confer letter was sent by email on July 13, 2026, to which Plaintiff did not respond. Pursuant to Code of Civil Procedure sections 430.41, subdivision (a) and 435.5, subdivision (a), there must be an attempt to meet and confer in person, by telephone, or by video conference.

The parties are ordered to engage in meet and confer efforts over their dispute in person, by phone, or by video conference, as required by Code of Civil Procedure sections 430.41, subdivision (a) and 435.5, subdivision (a).

If the parties resolve their dispute, then Defendant shall promptly take the demurrer and motion to strike off calendar. If the parties do not resolve their dispute, then Defendant's counsel shall file a declaration regarding the meet and confer efforts by September 28, 2026.

26CV-04253 Jennifer Calderon vs Daniel Quirarte

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service of the notice of hearing on Respondent was filed August 31, 2026. Proof of timely service by mail of the response to the request for a civil harassment restraining order on Petitioner was filed September 3, 2026.

26CV-04271

Jennifer Adame Calderon vs Jessica Quirarte

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service of the notice of hearing on Respondent was filed August 31, 2026.

Order to Show Cause Re: Restraining Order cross petition

Proof of timely service by mail of the cross-petition on Petitioner/Cross-Respondent was filed September 3, 2026.

26CV-04430

Carolina Bucio Perez vs Margarita Perez

Order to Show Cause Re: Restraining Order

Appearance required. No proof of service of the notice of hearing and temporary orders on Respondent has been filed with the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, September 09, 2026
10:00 a.m.

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Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
20CV-02556	Cavalry SPV I, LLC vs. Sheila Rodrigues
	Order to Show Cause Re: Dismissal - Notice of Settlement
	Continued from April 29, 2026, at request of counsel for Plaintiff.
	On November 1, 2021, Plaintiff filed a Notice of Settlement indicating conditional settlement and that a request for dismissal would be filed no later than April 14, 2026. No request for dismissal has been filed. If no one appears to request more time to complete the settlement, the Court will dismiss the action pursuant to rule 3.1385(c)(2) of the California Rule of Court.
23CV-00931	Midland Credit Management Inc. vs. Ashley Moss
	Order to Show Cause Re: Dismissal - Notice of Settlement
	On June 28, 2023, Plaintiff filed a Notice of Settlement indicating conditional settlement and that a request for dismissal would be filed no later than June 8, 2026. No request for dismissal has been filed. If no one appears to request more time to complete the

settlement, the Court will dismiss the action pursuant to rule 3.1385(c)(2) of the California Rule of Court.

24CV-02155 Synchrony Bank vs. Maria Larios

Status Review of Settlement

Appearance required.

25CV-01633 TD Bank USA, N.A. vs. Sydney Hope

Order to Show Cause Why Monetary Sanctions Should Not Be Imposed for Failure to Attend Case Management Conference on July 22, 2026

Appearance required.

Case Management Conference

Appearance required.

25CV-02736 LVNV Funding LLC vs. Christine Bussard

Order to Show Cause Re: Dismissal - Notice of Settlement

On June 16, 2025, Plaintiff filed a Notice of Settlement indicating conditional settlement and that a request for dismissal would be filed no later than July 7, 2026. No request for dismissal has been filed. If no one appears to request more time to complete the settlement, the Court will dismiss the action pursuant to rule 3.1385(c)(2) of the California Rule of Court.

25CV-02808 TD Bank Usa, N.A. vs. Ma Guarneros

Order to Show Cause Why Monetary Sanctions Should Not Be Imposed for Failure to Attend Case Management Conference on July 29, 2026

Appearance required.

Case Management Conference

Appearance required.

26CV-01752

American Express National Bank vs. Michael Sparacino

Order to Show Cause Re: Dismissal - Notice of Settlement

No appearance required. The Court has reviewed the declaration submitted by Plaintiff's counsel and notes that payments under the settlement agreement are expected through the end of April, 2028. On the Court's own motion, the hearing on the OSC re: dismissal is continued to June 28, 2028, at 10:00 a.m. in Courtroom 9. The clerk's office is directed to provide notice to all parties who have appeared in this action.

26CV-02047

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Status Review of Settlement

Appear to address the status of the Stipulation for Entry of Judgment filed on July 20, 2026.

26CV-02397

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial

Appearance required.

26CV-03276

MERCO Credit Union vs. Vivianna Alvarez

Motion to Vacate Judgment (Small Claims)

Appearance required.

26CV-03531

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-03605

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, September 09, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
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24CV-04548	LVNV Funding LLC vs. Choua Yang
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Court Trial

Appearance required.

24CV-04925	Santa Clara County Federal Credit Union vs. Rosie Perez
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Order to Show Cause Why Sanctions Should Not Be Imposed for Failure to Attend Hearing on June 12, 2026

Appearance required.

Court Trial

Appearance required.

25CV-02573 Discover Bank vs. Karmveer Grewal

Court Trial

Appearance required.

25CV-04794 Midland Credit Management Inc. vs. Ashley Galindo

Court Trial

Appearance required.
